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STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS	▲ COURT USE ONLY ▲
633 17 th Street, Suite 1300 Denver, Colorado 80202	
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS,	CASE NUMBER:
Petitioner,	_____2013-
vs.	
WHITNEY HARRAH, CAC III, ACC #6476, LPC #5022,	
Respondent.	
NOTICE OF DUTY TO ANSWER, NOTICE TO SET, NOTICE OF HEARING, NOTICE OF CHARGES, AND OPTION TO ENGAGE IN ALTERNATIVE DISPUTE RESOLUTION	

TO: WHITNEY HARRAH, LPC, CAC III:

NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to § 24-4-105(2)(b), C.R.S., you are required to file a written answer to the attached Notice of Charges with the Office of Administrative Courts ("OAC"), 633 Seventeenth Street, Suite 1300, Denver, Colorado 80202, within 30 days after the mailing of this Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges, and Option to Engage in Alternative Dispute Resolution (collectively referred to as "Notice of Charges"). You must also mail a copy of such answer to the assistant attorney general who has signed this Notice of Charges for the State Board of Licensed Professional Counselor Examiners ("the Board").

If you fail to file your written answer within 30 days, without further notice an order entering a default decision may be issued against you for the relief requested in the Notice of Charges or such other penalties which may be provided for by law.

NOTICE TO SET

YOU ARE HEREBY NOTIFIED that the attorney for the Board or representative will appear by phone at 11:15 a.m. on September 13, 2013, at

OAC, 633 Seventeenth Street, Suite 1300, Denver, Colorado 80202, in order to set the date, time, and location for a hearing regarding the following Notice of Charges. You may be present in person or by counsel, or you may make prior arrangements to be reached by telephone at the time and date specified above by contacting the setting clerk prior to the day of setting at (303) 866-5797. In the event you do not appear, a date will be obtained and you will be notified in writing of the hearing date, time, and place.

NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to §§ 12-43-221, -223, and -224 C.R.S., and §§ 24-4-104 and -105, C.R.S., a hearing will be held before an authorized Administrative Law Judge at a time and location to be determined pursuant to the above Notice to Set for the purpose of determining whether the certificate to practice addiction counseling and/or the license to practice professional counseling of Whitney Harrah should be revoked, suspended, or other lawful discipline imposed for violations of § 12-43-222(1)(b) and (g), C.R.S., which state as follows:

The following provisions of the Colorado Revised Statutes are relevant to this matter:

§ 12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or certified under this article violated this article if the person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

§ 12-43-201. Definitions. As used in this article, unless the context otherwise requires:

(9)(a) "Psychotherapy" means the treatment, diagnosis, testing, assessment, or counseling in a professional relationship to assist individuals or groups to alleviate mental disorders, understand unconscious or conscious motivation, resolve emotional, relationship, or attitudinal conflicts, or modify behaviors which interfere with effective emotional, social, or intellectual functioning. Psychotherapy follows a planned procedure of intervention which takes place on a regular basis, over a period of time, or in the cases of testing assessment and brief psychotherapy, psychotherapy can be a single intervention.

(b) It is the intent of the general assembly that the definition of psychotherapy as used in this article be interpreted in its narrowest sense to regulate only those persons who clearly fall within the definition set forth in this subsection (9).

(9.1)(a) "Registered psychotherapist" means a person:

(I) Whose primary practice is psychotherapy or who holds himself or herself out to the public as being able to practice psychotherapy for compensation; and

(II) Who is registered with the state board of registered psychotherapists pursuant to section 12-43-702.5 to practice psychotherapy in this state.

(b) "Registered psychotherapist" also includes a person who:

(I) Is a licensed school psychologist pursuant to section 22-60.5-210(1)(b), C.R.S.;

(II) Is practicing outside of a school setting; and

(III) Is registered with the state board of registered psychotherapists pursuant to section 12-43-702.5.

§ 12-43-702.5. Data base of unlicensed psychotherapists – unauthorized practice – penalties – data collection. (1) The state board of registered psychotherapists shall maintain a database of all registered psychotherapists. The board shall charge a fee in the same manner as authorized in section 24-34-105, C.R.S., for recording information in the database as required by this section. Information in the database maintained pursuant to this section shall be open to public inspection at all times.

(2) Any person not otherwise licensed, registered, or certified pursuant to this article who is practicing psychotherapy in this state shall register with the board by submitting his or her name, current address, education qualifications, disclosure statements, therapeutic orientation or methodology, or both, and years of experience in each specialty area. Upon receipt and review of the required information, the board may approve the psychotherapist for registration in the database required by subsection (1) of this section. A registered psychotherapist shall be required to update this information upon renewal of his or her registration and at other times and under conditions specified by the board by rule. At the time of recording the information required by this section, the registered psychotherapist shall indicate whether he or she has been convicted of, or entered a plea of guilty or nolo contendere to, any felony or misdemeanor.

(3) An unlicensed person whose primary practice is psychotherapy or how holds himself or herself out to the public as able to practice psychotherapy for compensation shall not practice psychotherapy unless the person is registered with the board and included in the database required by this section. Notwithstanding the requirements of this section, a registered psychotherapist shall not use the term “licensed”, “certified”, “clinical”, “state-approved”, or any other term or abbreviation that would falsely give the impression that the psychotherapist or the service that is being provided is recommended by the state, based solely on inclusion in the database.

(4) The state board of registered psychotherapists shall not register a person pursuant to this section unless such person successfully completed a jurisprudence examination developed and approved by the division;

(5) Any unlicensed person who practices psychotherapy without first complying with the registration requirements of this section commits a class 2 misdemeanor and shall be punished as provided in section 18-1.3-501, C.R.S., for the first offense, and for the second and subsequent offense, the person commits a class 6 felony and shall be punished as provided in section 18-1.3-401, C.R.S.

YOU ARE FURTHER NOTIFIED that at the hearing in this matter, you shall have the right to appear in person and/or by legal counsel, to present evidence in your own behalf, to cross examine any witnesses presented by the Board, and to rebut any evidence presented by the Board. You may also have subpoenas issued on your behalf in compliance with OAC General Services Rules of Procedure Rule 18.

NOTICE OF CHARGES

The Board charges and alleges as follows:

1. Whitney Harrah ("Respondent") initially was certified as an addiction counselor on January 23, 2007, and was so certified at all times relevant to this matter and is now so certified.

2. Respondent was licensed as a professional counselor on August 11, 2008, and was so licensed at all times relevant to this matter and is now so licensed.

3. Respondent currently holds the Clinical Director position at "Adolescent and Family Institute of Colorado, Inc." ("AFIC"), and held that position as all times relevant to this matter.

4. As Clinical Director Respondent works in collaboration with the Medical Director and psychiatric consultants in establishing and maintaining a competent assessment and treatment of care in all five axes.

5. Respondent provides direct supervision and on-going monitoring for all Master level primary therapists at AFIC.

6. AFIC provides family-focused therapy to treat individual adolescents.

7. For example, AFIC advertises that its psychotherapy services are a "family therapy oriented program." AFIC advertises that its "therapeutic energy is directed to enable parental fixtures to deal more completely with their troubled adolescent." AFIC advertises that "changing the way the people in the family relate to each other leads to changes in the individuals."

8. AFIC's therapy philosophy is to provide therapy to the family system in order to treat individuals who are affected by a mental/emotional illness, alcohol and drug abuse problems, depression, eating disorders, disruptive behavior disorders, academic problems, psychosomatic disorders, marital or family conflicts, and other interpersonal issues.

9. AFIC reserves the right to refuse admission to patients whose immediate family system will not enter therapy.

10. Based on this philosophy, AFIC provides family group therapy for family members of an admitted adolescent's family.

11. As the Clinical Director at AFIC, Respondent works with Alex M. Panio, PhD, the founder and Chief Executive Officer of AFIC.

12. Dr. Panio is not registered to practice psychotherapy in the Board's database of registered psychotherapists in the State of Colorado.

13. Dr. Panio was registered as a psychotherapist on December 31, 1992, having been issued registration number NLC 1937. This registration expired on June 30, 1998

14. On or about August 24, 2011, the Board of Registered Psychotherapists was advised that Dr. Panio was providing psychotherapy services to individuals without being registered as a psychotherapist.

15. Dr. Panio holds himself out to the public as being able to practice psychotherapy for compensation.

16. Dr. Panio provides psychotherapy services through AFIC.

17. Dr. Panio is the primary therapist for parents of adolescents at AFIC.

18. Dr. Panio makes clinical decisions regarding adolescent patients at AFIC.

19. Dr. Panio makes clinical decisions regarding parents of adolescent patients at AFIC.

20. Respondent was present while Dr. Panio provided psychotherapy to patients.

21. In February, 2011, the H family sought treatment at AFIC for their family stemming from their daughter MH's substance abuse. The identities of the H family members are known to Respondent.

22. MH was admitted into AFIC as an inpatient.

23. During the course of family treatment, JH (Father) and CH (Mother) attended family therapy sessions with Respondent.

24. During the course of those sessions, Dr. Panio engaged in the practice of psychotherapy while Respondent was present and responsible for the sessions as the Clinical Director.

25. Dr. Panio continues to offer psychotherapy services to individuals for compensation.

26. By providing mental health therapies and counseling to clients for the aforementioned reasons, Dr. Panio has been and continues to be engaged in the practice of psychotherapy, as defined in § 12-43-201(9), C.R.S., without being listed in the database as a registered psychotherapist, as outlined in § 12-43-201(9.1)(a) and (b), C.R.S., in violation of § 12-43-702.5, C.R.S.

27. Respondent is responsible for psychotherapy services provided to clients.

28. Respondent aided and abetted the practice of psychotherapy by Dr. Panio, an unregistered and unlicensed individual.

COUNT I

**Assisting and abetting an unregistered individual Practicing
Psychotherapy without Being Listed in the Database
as a Registered Psychotherapist**

29. The Board incorporates paragraphs 1 through 28 as if fully set forth herein.

28. Dr. Panio's practice of psychotherapy, as defined in § 12-43-201(9), C.R.S., without being listed in the database as a registered psychotherapist, as outlined in § 12-43-201(9.1)(a) and (b), C.R.S., and as set forth herein, constitutes a violation of § 12-43-702.5 and 12-43-222(1)(b), C.R.S.

29. Based upon the information contained in the aforementioned paragraphs, Respondent is in violation of 12-43-222(1)(b), C.R.S. for assisting and abetting the violations of this article committed by Dr. Panio.

COUNT II

**Respondent acted or failed to act in a manner that does not meet the
generally accepted standards of the professional discipline under
which the person practices**

30. The Board incorporates paragraphs 1 through 29 as if fully set forth herein.

32. Respondent allowed psychotherapy to be performed by an unlicensed and unregistered individual.

33. Based upon the information contained in the aforementioned paragraphs, Respondent is in violation of 12-43-222(1)(g), C.R.S. for acting or failing to act in a manner that does not meet the generally accepted standards of the professional discipline under which she practices, namely licensed professional counseling.

WHEREFORE, the , the Board prays for an Order revoking Respondent's license to practice professional counseling or imposing appropriate discipline on her license to practice professional counseling in the State of Colorado, and for such other relief as deemed proper and just.

Respectfully submitted this 22 day of July, 2013.

JOHN W. SUTHERS
Attorney General



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